

Applicable Law Acts

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User Query :

I signed up for an online shopping application and provided my name, phone number, delivery address and purchase information for placing orders. I later started receiving targeted calls and messages from unrelated financial and insurance companies that appeared to know details about my purchases. The shopping platform says that customer information may have been shared with marketing partners, but I do not remember giving clear consent for this use. What legal provisions may apply?

Job Id. : Scenario 15/Combined Act

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AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 72	(Breach of confidentiality and privacy of personal data)
Section 43A	(Failure to protect sensitive personal data, leading to compensation liability)

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The shopping platform’s sharing of sensitive personal data (name, phone number, delivery address, purchase history) with third-party marketing partners without explicit consent violates **Section 72** . *Shreya Singhal v. Union of India* (2015) and *K.S. Puttaswamy v. Union of India* (2017) affirm that privacy is a fundamental right under Article 21, and implied consent via "terms and conditions" is insufficient. **Section 43A** applies as the platform failed to implement granular consent mechanisms for third-party sharing, breaching "reasonable security practices" (as defined in the Explanation to **Section 43A**).

✓ STRENGTHS & RIGHTS

- 1
- Explicit requirement for *unambiguous consent* under **Section 72** empowers users to reject third-party sharing.
- 2
- Section 43A** enables compensation claims for distress or financial loss from unauthorized data sharing.
- 3
- Judicial precedent (*Puttaswamy*) strengthens enforceability of data privacy rights.

✗ RISKS & OBLIGATIONS

- 1
- For the platform
- 2
- Criminal liability under **Section 72** (up to 3 years imprisonment or ₹1 lakh fine).

- 3** Civil liability under **Section 43A** (compensation without proving negligence).
- 4** For the user
- 5** Burden to prove ***lack of explicit consent*** (e.g., buried in Terms & Conditions).
- 6** Limited remedies (**Section 72** requires criminal complaint; **Section 43A** requires separate civil suit).
- 7** Risk of weak enforcement by cybercrime units prioritizing high-impact cases.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1. Section 72** (Criminal Complaint): File with local cybercrime cell, supported by:
- 2.** Screenshots of privacy policy (no consent clause).
- 3.** Evidence of unsolicited calls/messages.
- 4. Section 43A** (Civil Suit): File in District Court for compensation, requiring:
- 5.** Expert report on security practice failures.
- 6.** Proof of data sharing (e.g., third-party marketing emails).
- 7.** Electronic Evidence: Preserve app logs for admissibility under **Section 65B** .

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

APPLICABLE SECTIONS

Section 6	(1) (Consent must be voluntary, specific, informed, and unambiguous).
Section 6	(2) (Infringing consent renders it invalid).
Section 5	(1)(a) (Consent must specify processing purpose).
Section 13	(1)(a) (Right to withdraw consent for specific purposes).
Section 6	(6) (Data Fiduciary must cease processing upon withdrawal).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The platform’s sharing of data for marketing purposes (unrelated to order fulfillment) violates **Section 5** (1)(a) and **Section 6** (1). Consent for "order fulfillment" (as illustrated in the context) does not cover marketing; sharing with third parties for unrelated purposes is unlawful under **Section 6** (2). Violates *data minimization* (**Section 11**) by processing data beyond the stated purpose. *Legal Reasoning*: **Section 6** (1) requires consent to specify the exact purpose (e.g., "order processing," not "marketing"). The platform’s "marketing partners" defense is legally void under **Section 6** (2).

✓ STRENGTHS & RIGHTS

- 1
- Right to withdraw consent (Section 13 (1)(a))**
User can demand cessation of marketing data sharing.
- 2
- Right to information (Section 5 (1)(i))**
Platform must disclose data-sharing purposes in plain language at signup.
- 3
- Strict consent rules**
Prevents misrepresentation of data usage (e.g., "marketing" as an undisclosed purpose).

✗ RISKS & OBLIGATIONS

- 1
- For the platform**

2

Penalties

Up to ₹250 crore under **Section 43** for repeated violations.

3

Invalid consent

Reliance on "marketing partners" is legally void (**Section 6** (2)).

4

Grievance failure

Penalty under **Section 42** (2) for not appointing a grievance officer.

5

For the user

6

Requires proactive complaint filing (no automatic enforcement).

7

Limited scope for immediate cessation without formal complaint.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Complaint Filing: Submit to the Data Protection Board (DPB) via its portal.

GRIEVANCE REDRESSAL

1. Platform must acknowledge complaint within 7 days (**Section 16** (1)) and resolve within 1 month.
2. Remedies:
3. Demand cessation of data sharing under **Section 6** (6).
4. Seek penalties under **Section 43** (₹10–250 crore based on severity).

COMPLIANCE AUDIT

1. Platform must maintain consent records for 6 months (**Section 7** (1)).

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